



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Lonnie Olson, Planner I
Subject: PUDC-23-102 / Hitching Post Plaza, 3rd Filing / Final Plat
Date: September 11, 2023

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/11/2023
- Public Services Committee 9/19/2023
- Final consideration 9/25/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their September 5, 2023 meeting and unanimously voted to recommend the Governing Body to approve this application, with staff's recommended condition.

A revised plat was submitted by the applicant but was not submitted in time for Staff to review prior to the creation of the Planning Commission Staff Report. Staff review of the revised plat found it addressed all of the Staff conditions in the Planning Commission Staff Report. Upon Staffs review of the revised plat a new condition was added. The condition is:

- " 1. Prior to Governing Body approval:
- a. Revise storm sewer easement to the satisfaction of the City Engineer."

The Planning Commission Staff Report is attached and remains unchanged.

Attachments:

1. Resolution
2. Final Plat Map (dated 8/24/2023)
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR HITCHING POST PLAZA, 3RD FILING, A REPLAT OF LOT 3, HITCHING POST PLAZA, 2ND FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF LINCOLNWAY AND WEST OF PAUL SMITH WAY)."

WHEREAS, 1600 Hitching Post, LLC has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, 1600 Hitching Post, LLC the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and,

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office;

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Hitching Post Plaza, 3rd Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

NOTES

1. BASIS OF BEARINGS - WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83-2011. DISTANCES ARE GROUND DISTANCES.
2. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4"x24" REBAR.
3. NO PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY FALL WITHIN A F.E.M.A. 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M. PANEL No.56021C1089F, DATED 1/17/2007.
4. "MUTUAL EASEMENTS" DESIGNATED HEREON SUPPLEMENT, REPLACE OR CORRESPOND TO THOSE "INGRESS/EGRESS, CIRCULATION, DRAINAGE, & UTILITY EASEMENT(S)" PLATTED WITH HITCHING POST PLAZA, 2nd FILING AND ARE GRANTED TO ALL OWNERS OF LANDS CONTAINED WITHIN THE PLAT BOUNDARY FOR THE PURPOSES INDICATED. PARKING (WHERE APPLICABLE) AND LANDSCAPING IS ALLOWED WITHIN THESE EASEMENT AREAS PROVIDED IT DOES NOT CONFLICT OR OBSTRUCT WITH PROPER CIRCULATION, SITE DESIGN, OR OTHER APPLICABLE STANDARDS OR REGULATIONS.
5. "JOINT ACCESS EASEMENT" GRANTED HEREON TO ALL OWNERS OF LANDS CONTAINED WITHIN THE PLAT BOUNDARY FOR MUTUAL ACCESS TO WEST LINCOLNWAY (AKA US 30) AND ANY NECESSARY UTILITY(IES) & DRAINAGE; SAID EASEMENT IS COINCIDENT WITH WYDOT ACCESS PERMIT #LA-022-48528.
6. "MUTUAL DRAINAGE EASEMENT" ACROSS LOT 4 HEREON IS COINCIDENT WITH THE EXISTING EASEMENT PLATTED WITH HITCHING POST PLAZA, 2nd FILING AND IS GRANTED HERewith UNDER THE SAME TERMS, CONDITIONS, AND GRANTEE(S) FOR STORMWATER DETENTION AND DRAINAGE FACILITIES FOR THE LANDS CONTAINED WITHIN THIS REPLAT AND LOTS 1 & 2, BLOCK 1, HITCHING POST PLAZA, 2nd FILING. OWNERSHIP OF SAID LOT 4 SHALL BE ESTABLISHED AS UNDIVIDED PROPORTIONAL INTEREST (BY RATIO OF OWNERSHIP AREA/TOTAL FEE-SIMPLE LOT AREA) OF ALL OWNER(S) OF LANDS CONTAINED WITHIN THIS REPLAT. SAID LOT 4 SHALL BE MANAGED AND MAINTAINED BY THE CURRENT LANDOWNERS(S), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, EXCEPT AS OTHERWISE IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS). ANY CONVEYANCE OF ANY OF THE LOTS HEREBY CREATED SHALL INCLUDE "AN UNDIVIDED PROPORTIONAL INTEREST IN LOT 4, BLOCK 1, HITCHING POST PLAZA, 3rd FILING".
7. "BOPU UTILITY & ACCESS EASEMENT(S)" (HEREINAFTER REFERRED TO AS "BOPU EASEMENT(S)"), SHOWN AND DESCRIBED HEREON, ARE HEREBY GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE (BOPU), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR INSTALLATION, MAINTENANCE, REPAIR, ALTERATION AND OPERATION OF DOMESTIC WATER AND SANITARY SEWER MAINS/PIPELINES AND FIRE HYDRANTS (COLLECTIVELY REFERRED TO AS "FACILITIES"). NO OTHER UTILITIES MAY INSTALL FACILITIES ON OR WITHIN THE BOPU EASEMENT, EXCEPT AS FOLLOWS:
 - i. OTHER UTILITIES MAY CROSS THE BOPU EASEMENT, IF AND ONLY IF:
 - ii. A MINIMUM OF 24 INCHES OF VERTICAL CLEARANCE IS PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU; AND
 - iii. A COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU EASEMENT IS PROVIDED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU EASEMENT.
 - B. IF GRANTOR REQUIRES RELOCATION OF THE FACILITIES, GRANTEE AGREES TO RELOCATE THE FACILITIES PROVIDED THAT GRANTOR PAYS FOR THE RELOCATION OF THE FACILITIES, PROVIDES A SUITABLE ALTERNATE LOCATION FOR SUCH FACILITIES AND GRANTS THE NECESSARY EASEMENT RIGHTS AT THE NEW LOCATION UPON THE SAME TERMS AND CONDITIONS PROVIDED WITH THE ORIGINAL EASEMENT.
 - C. IF GRANTEE (BOPU/CITY OF CHEYENNE) REQUIRES RELOCATION OF THE FACILITIES, GRANTEE SHALL PAY FOR REMOVAL AND RELOCATION OF THE FACILITIES.
 - D. IF GRANTEE ACCESSES THE FACILITIES OR UNDERTAKES WORK OR MAINTENANCE ON THE FACILITIES, GRANTEE SHALL REPAIR ANY DAMAGE TO GRANTOR'S PROPERTY RESULTING THEREFROM, INCLUDING RESTORATION OF ANY AREAS DISTURBED AS A RESULT OF SUCH ACCESS AND/OR WORK.
 - E. PER §10.13.c OF THE BOPU INFRASTRUCTURE POLICIES AND DESIGN CRITERIA (AMENDED 11/27/2018), A MINIMUM 10-FOOT HORIZONTAL SET-BACK FROM EDGE OF BOPU EASEMENT SHALL BE MAINTAINED FOR PERMANENT STRUCTURES. SLEEVES MAY BE USED IN LIEU OF A 10-FOOT SETBACK.
8. "BHE EASEMENTS" SHOWN HEREON ARE GRANTED TO BLACK HILLS ENERGY, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR "DRY" UNDERGROUND UTILITY(IES) DISTRIBUTION AND SERVICE(S).
9. "PUBLIC PEDESTRIAN EASEMENT" SHOWN HEREON PLATTED WITH HITCHING POST PLAZA, 2nd FILING, GRANTED FOR PUBLIC SIDEWALK AND TO BE CONSIDERED AND REGARDED AS PUBLIC RIGHT-OF-WAY UNDER ADMINISTRATION AND JURISDICTIONAL AUTHORITY OF THE CITY OF CHEYENNE AND THE WYOMING TRANSPORTATION COMMISSION (WYDOT). SAID EASEMENT PARTICULARLY DESCRIBED AS BEING ALL OF THE SOUTH 18 FEET OF LOT 2, BLOCK 1, HITCHING POST PLAZA, 2nd FILING AND ALL OF THE SOUTH 18 FEET OF LOT 1, BLOCK 1, HITCHING POST PLAZA, 3rd FILING (THIS PLAT).
10. "18" SANITARY SEWER SERVICE EASEMENT" ACROSS LOT 2, BLOCK 1, HITCHING POST PLAZA, 2nd FILING PLATTED WITH HITCHING POST PLAZA, 2nd FILING TO PROVIDE SERVICE CONNECTION FOR LOT 1, BLOCK 1, HITCHING POST PLAZA, 2nd FILING.
11. PURSUANT TO PRIOR SUBDIVISION PLATS (CHEYENNE ICE AND EVENTS CENTER, 4th FILING, AND HITCHING POST PLAZA, 1st FILING (NOW DEFUNCT)): ALL STAKEHOLDERS, INCLUDING THE CITY OF CHEYENNE, HEREBY MUTUALLY AGREE, ATTEST, AND CONSENT, BY THEIR SIGNATURES AFFIXED HEREON IN APPROVAL, VACATION, AND DEDICATION STATEMENTS, TO THE PRIOR AND CONTINUED VACATION/ EXTINGUISHMENT OF THAT "RECIPROCAL EASEMENT AGREEMENT" RECORDED ON THE 30TH DAY OF NOVEMBER, 2006 AT BOOK 1981, PAGE 2069 IN THE IN THE REAL ESTATE OFFICE OF THE COUNTY CLERK AND EX-OFFICIO REGISTER OF DEEDS FOR LARAMIE COUNTY, WYOMING.
12. LOT 2, BLOCK 1 CREATED HERewith IS INTENDED TO ACCOMMODATE SHARED FACILITIES AND MUTUAL ACCESS TO HITCHING POST PLAZA, 1st, 2nd, & 3rd FILINGS. OWNERSHIP AND MAINTENANCE RESPONSIBILITY ARE TO REMAIN WITH THE CURRENT LANDOWNER, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.

NOTE TO ASSESSOR

BY THEIR SIGNATURES AFFIXED HEREON, ALL STAKEHOLDERS OF THIS SUBDIVISION PLAT AS SHOWN HEREON CONSENT TO THE FOLLOWING BY THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES:

OWNERSHIP OF LOT 4, BLOCK 1, COMMON LOT AND DRAINAGE EASEMENT, IS RESERVED FOR MUTUAL USES AS DESCRIBED; SAID TRACT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. OWNERSHIP OF SAID LOT SHALL BE ESTABLISHED BY UNDIVIDED PROPORTIONAL INTEREST (RATIO OF OWNERSHIP AREA/TOTAL PLATTED LOT AREA(S) OF BLOCK 1, HITCHING POST PLAZA, 3rd FILING) OF ALL OWNER(S) OF LOTS CONTAINED WITHIN BLOCK 1, THIS PLAT THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.

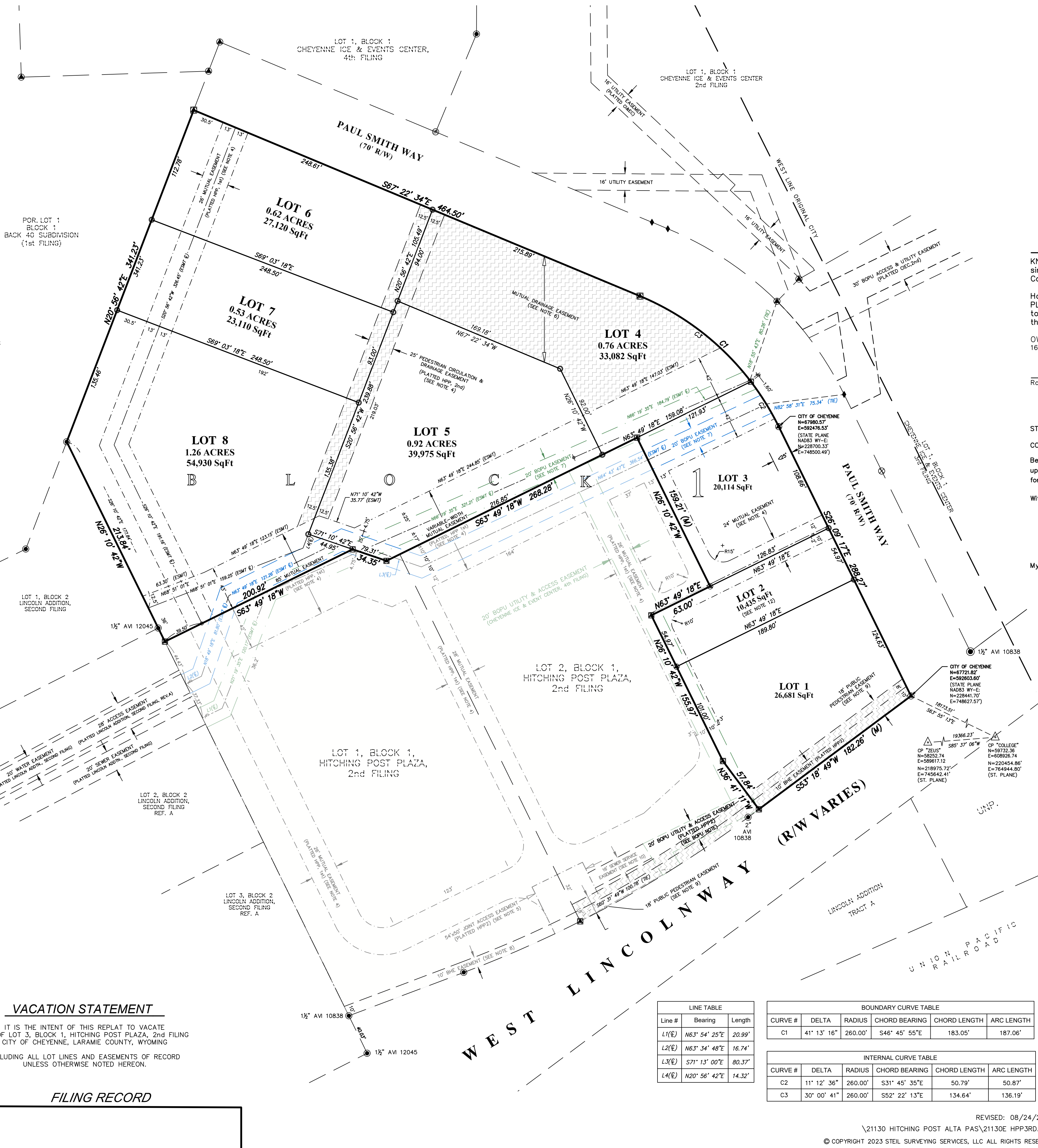
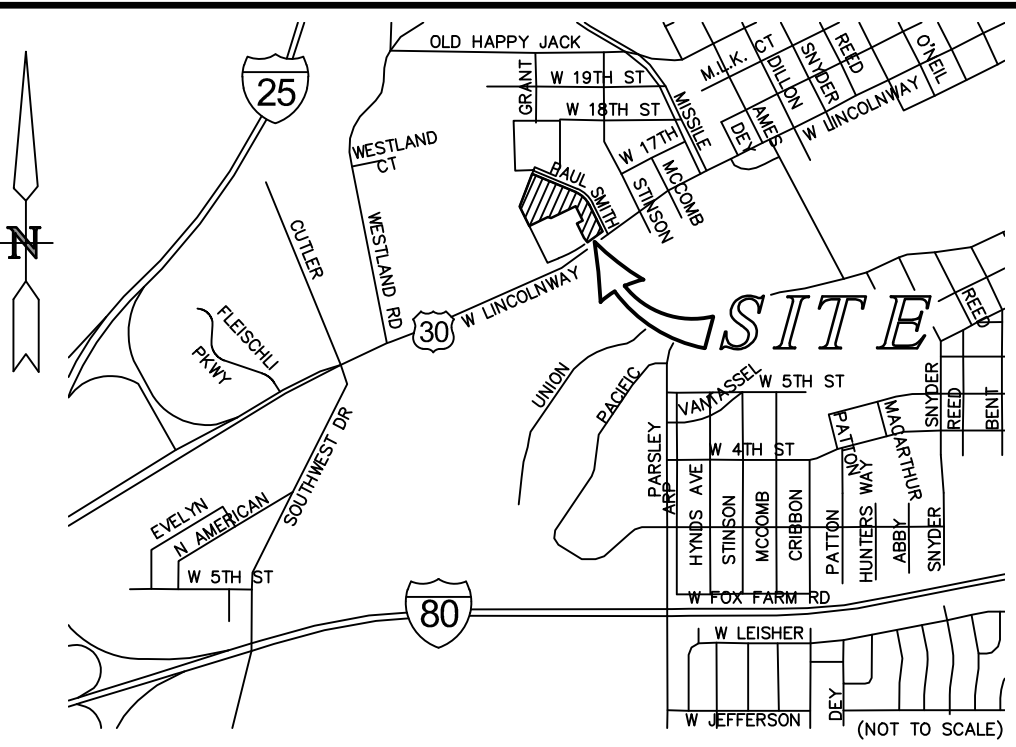
AUTHORITY OF PRIVATE OPEN SPACE: COMMON LOT(S) IS/ARE OWNED AS DESCRIBED ABOVE, HOWEVER, AUTHORITY OF SAID LANDS AND PLATTED BOUNDARIES (OR ADJUSTMENTS THERETO) MAY BE ASSIGNED, IN WHOLE OR IN PART, TO A MANAGING ENTITY OR OTHER ESTABLISHED OWNERS ASSOCIATION, AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS).

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOT 3, BLOCK 1, HITCHING POST PLAZA, 2nd FILING CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING INCLUDING ALL LOT LINES AND EASEMENTS OF RECORD UNLESS OTHERWISE NOTED HEREON.

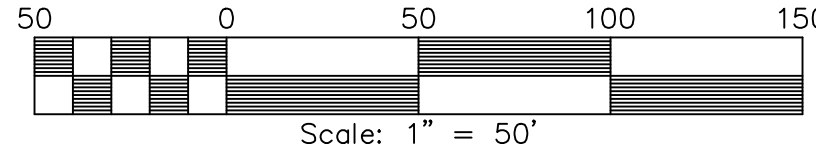
FILING RECORD

VICINITY MAP



LEGEND

- SET 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" x 24" REBAR
- ⊗ FOUND 1 1/2" ALUMINUM CAP "SSS P.L.S. 2500"
- ⊗ FOUND 1 1/2" ALUMINUM CAP "SSS P.L.S. 5910"
- FOUND 2" ALUMINUM CAP STAMPED AS NOTED
- FOUND ALUMINUM CAP "P.E.L.S. 2617"
- ⊕ FOUND 3/4" REBAR
- ◆ FOUND NAIL
- (M) DENOTES MEASURED DATA
- (R) DENOTES RECORD DATA
- CIEC, --- DENOTES CHEYENNE ICE AND EVENTS CENTER, FILING #
- HPP, --- DENOTES HITCHING POST PLAZA, FILING #
- ▨ DENOTES SHARED DRAINAGE EASEMENT(S) OR PUBLIC PEDESTRIAN EASEMENT(S)



DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: 1600 HITCHING POST, LLC, owner in fee simple of All of Lot 3, Block 1, Hitching Post Plaza, 2nd Filing, City of Cheyenne, Laramie County, Wyoming;

Has caused the same to be surveyed, vacated, and replatted to be known as HITCHING POST PLAZA, 3rd FILING and do hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires and do furthermore grant the easements as shown for the purposes indicated.

OWNER:
1600 Hitching Post, LLC

Robert Chamberlin as Member

OWNER ACKNOWLEDGEMENT

STATE OF WYOMING }
COUNTY OF LARAMIE } SS

Before me, a Notary Public in and for the state and county aforesaid, personally appeared Robert Chamberlin, who, upon oath, acknowledged that he/she is a member of 1600 Hitching Post, LLC and that executed this instrument for the purposes herein contained, by signing their name as such officer.

Witness my hand and official seal this ____ day of _____, 2023.

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

APPROVALS

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2023.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2023.

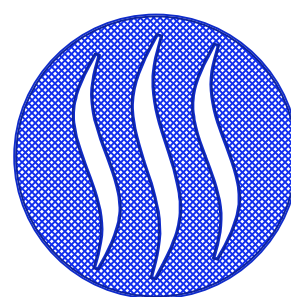
ATTEST: _____
Mayor City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

HITCHING POST PLAZA, 3rd FILING

A REPLAT OF
ALL OF LOT 3, BLOCK 1,
HITCHING POST PLAZA, 2nd FILING
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING
PREPARED MAY 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
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Planning and Development Department

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CITY OF CHEYENNE PLANNING COMMISSION

September 5, 2023

STAFF REPORT

FILE: PUDC-23-102: Hitching Post Plaza, 3rd Filing (Expedited Review)

REQUEST: A plat creating eight lots for commercial development and possibly multifamily residential.

LOCATION: 1600 W Lincolnway

APPLICANT: Casey Palma, Palma Land Planning LLC

OWNER: 1600 Hitching Post, LLC

ZONING: CB Community Business

PURPOSE: A plat subdividing one lot into eight lots to allow for commercial development and possibly multifamily.

PREPARED BY: Lonnie Olson, Planner I



RECOMMENDED MOTION:

Move to **approve** the Hitching Post, 3rd Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with conditions listed in the staff report.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a plat for 5.41 acres of land. The subject property is currently vacant. The proposed development is commercial development and possibly multifamily residential. There is a concurrent zone change for this property, PUDC-23-103, which proposes changing the zone of most of the property from CB Community Business to MUB Mixed-Use Business.

Staff received a revised submittal which may address all concerns; however the review is not complete at the time of this staff report.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed Use Commercial and Mixed Use Residential	CB-Community Business	Vacant
North	Mixed Use Residential	CB Community Business, MUB Mixed-Use Business (proposed to be changed to Public)	Vacant and Event Center
South	Mixed Use Commercial	LI-Light Industrial	Industrial Use
East	Mixed Use Commercial	CB-Community Business	Commercial and Public Facilities
West	Mixed Use Commercial	CB-Community Business	Vacant Commercial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

- 1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)**

This development is in conformance with the principles and future land uses identified in PlanCheyenne. The property is within the Urban Service Boundary and has access to all utilities.

The future land use map within PlanCheyenne identifies this area as developing with mixed-use commercial and mixed-use residential. PlanCheyenne encourages a mix of commercial and residential types.

The application **complies** with this review criterion.

- 2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

The proposed plat is a replat of a single lot which is within an existing subdivision. The location of streets, blocks, and public facilities are not being modified with this plat. The plat proposes internal access through easements rather than through streets. The subdivision would create 8 lots which would allow for commercial development and possibly multifamily.

The application **complies** with this review criterion.

- 3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. The required fees for the 3.4 acres of non-exempt land in this plat are as follows:

Land Acquisition Fee	\$1,190 (\$350 per acre)
Infrastructure Fee	\$1,190 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$2,380.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat. Park fees previously paid are credited to those currently due. Park fees were previously paid for by a platting action in 2023 and park fees have not changed since that time. No park fees will be charged at the signing of this plat.

Residential Enhancement Fee \$400 per dwelling unit

Commercial Enhancement Fee \$1,100 per acre

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Transportation Network (4.3):

This plat is occurring within an area of the community which has been previously developed. The existing block and street network largely meet applicable standards.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. However, due to the size of the property, plat-level open space is not required.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at \$603.42 per 1000 square feet of finished floor area. Public Safety Fees are required at \$949.37 per dwelling unit. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No further phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

The plat provides drainage easements and a drainage area. The applicant is working with the City Engineer on Engineering Plan Review and drainage concerns.

Traffic:

The previous Traffic Worksheet was submitted and reviewed. There were concerns with traffic at the plat level based on trip generation.

The application **complies** with this review criterion, with conditions.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed plat proposes eight lots. Lot four and lot two are not proposed as buildable lots. Lot four is proposed to be a lot for drainage and lot 2 is proposed to be an additional shared access and parking. The lots are intended to be buildable lots in the proposed zone district.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The plat proposes multiple lots that are not considered buildable. These lots contain drainage and access easements. With the original submittal of the plat no entity was identified to maintain these lots.

The application **does not comply** with this review criterion, however this can be fulfilled with conditions.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

Properties adjacent to this plat are zoned MUB, CB and LI. Some surrounding parcels are already developed. The proposed plat will not prohibit development on any of the adjacent parcels.

The application **complies** with this review criterion.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

- 11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

- 12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

Through the review process and application of the Preliminary Plat, Staff does recommend conditions to the plat. All conditions are anticipated to be addressed prior to final approval.

The application **complies** with this review criterion, with conditions.

- 13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)**

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

1. PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor clerical corrections
2. Concerns regarding drainage
3. Concerns regarding the new lots and building sizes in relation to the trip generation assignments
4. Acreage to calculate park fees

The applicant has submitted revisions which may address all above comments.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant, with conditions.

The area this plat is proposed in is anticipated to develop as a largely commercial development with some possibilities of residential development, based on both existing development and the patterns proposed by the comprehensive plan. The proposed plat is consistent with this development pattern.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

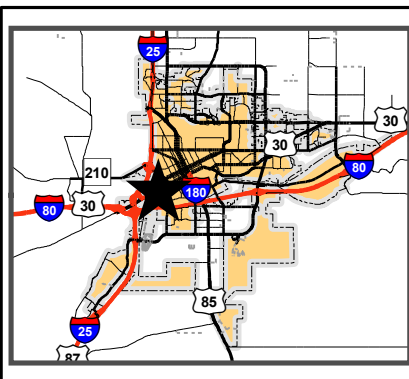
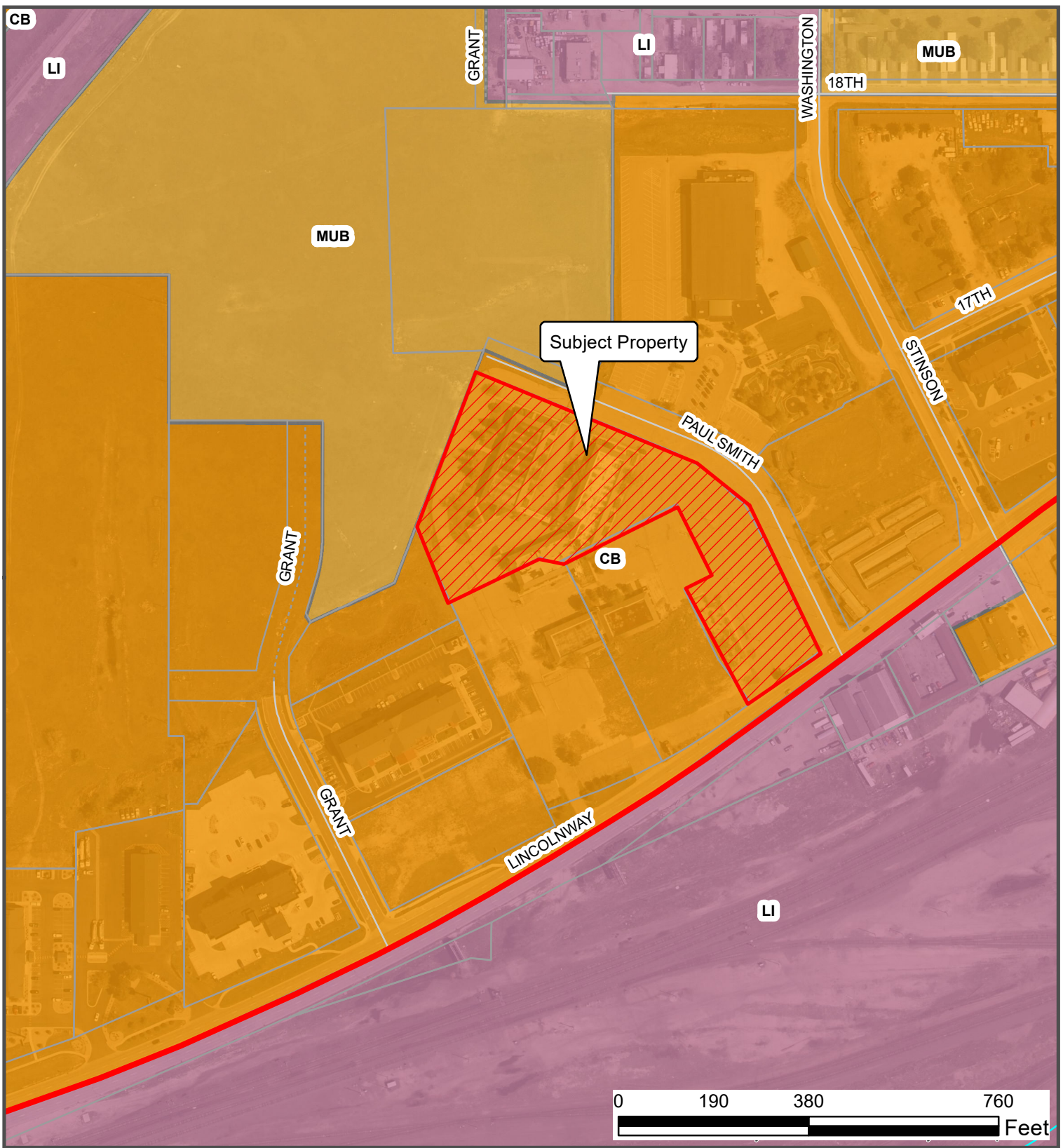
Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following conditions:

1. Prior to Governing Body approval fulfill the following:
 - a. Update the Traffic Impact Study for new trip assignments based on this plat
 - b. Make clerical corrections
 - c. Provide a defined owner maintenance agency for lot 4
 - d. Provide an Engineering Plan Review (or alternative documentation satisfactory to the City Engineer)

Should the applicant submit revisions which are determined to fulfill these conditions prior to the Planning Commission meeting, Staff may recommend approval without some or all of the above conditions.

ATTACHMENTS:

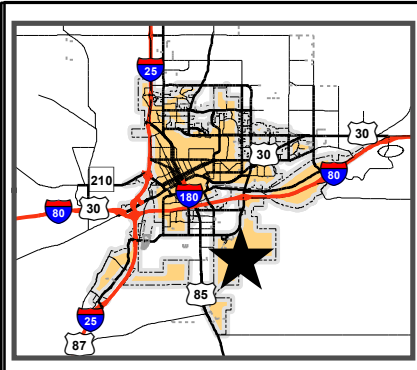
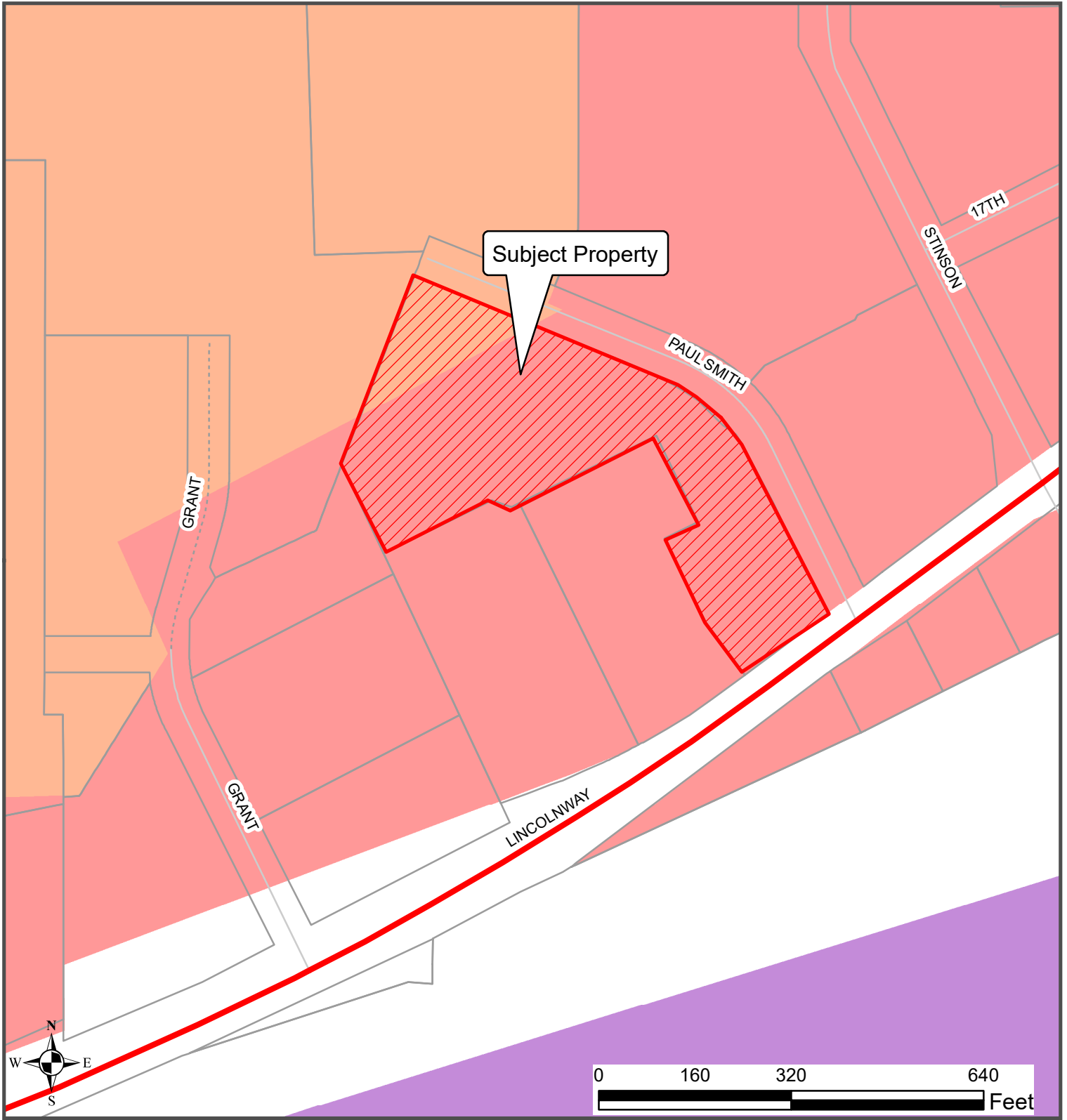
1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat



Attachment 1: Zoning Map PUDC-23-102

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend	
	Nov19_CityLimits
	Interstate
	Principal Arterial
	Minor Arterial
	Major Collector
	Minor Collector
	Local
	Private
	Platted not built
	HR / High Density Residential
	MR / Medium Density Residential
	LR / Low Density Residential
	NR-2 / Neighborhood Residential - Med. Density
	NR-3 / Neighborhood Residential - High Density
	AR / Agricultural Residential
	A-1 / Agricultural and Rural Residential
	A-2 / Agricultural
	AG / City Agricultural
	MUR / Mixed Use Residential Emphasis
	CBD / Central Business District
	CB / Community Business
	NB / Neighborhood Business
	MU / Mixed Use - County
	MUB / Mixed Use Business Emphasis
	MUE / Mixed Use Employment Emphasis
	HI / Heavy Industrial
	LI / Light Industrial
	P / Public
	AD / Airport District
	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-23-102

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	City Limits		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				



Cheyenne, WY

08/29/2023

PUDC-23-102

Plat - Expedited

Status: Active**Date Created:** Jul 19, 2023

Applicant

Casey Palma
casey@plandesignwy.com
1775 Goodnight Trail
Suite 210
Cheyenne, WY 82007
3079968281

Primary Location

0 W LINCOLNWAY
Cheyenne, WY 82001

Owner:

1600 HITCHING POST LLC
2366 MUGHO RD CHEYENNE, WY 82009

Application Information

This application has a deadline. The deadline is typically the third Wednesday of the month (about 47 days prior to the anticipated Planning Commission Meeting). Application Schedule (<https://www.cheyennecity.org/files/sharedassets/public/departments/planningdevelopment/review-schedules/2023-schedule-1.pdf>).

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.



I acknowledge the that Expedited status is not guaranteed.



Written Statement

This application is the subdivision of the previously created Lot 3 - the proposed development and lots to be created are generally in conformance with the assumptions and presentations of the Hitching Post Plaza Master Plan and (Administrative) 2nd Filing Replat [(approved March 28, 2023) to adjust easements on Lots 1 & 2, Block 1, Hitching Post Plaza]

Project Name

Hitching Post Plaza

Plat Title

Hitching Post Plaza, 3rd Filing

Current Subdivision

Hitching Post Plaza, 2nd Filing (Admin)

Project area (acres)

5.41

Proposed Lots

8

Pre-application Meeting Date

03/01/2023

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.

Owner(s) (or developers) behind the plat application will execute a sperate instrument for the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.

Casey L. Palma, AICP for Palma Land Planning, LLC
07/19/2023

Staff Use

Attachments

 HPP2-3_LOA-SIGNED_1600HitchingPost_CityApplication.pdf

Uploaded by Casey Palma on Jul 19, 2023 at 3:10 pm

 21130E_HPP3rd-RevPrePlat_082323.pdf

Uploaded by Casey Palma on Aug 24, 2023 at 12:37 am

 21130E_HPP3rd-RevFINAL_082323.pdf

Uploaded by Casey Palma on Aug 24, 2023 at 12:37 am

Developer
t and is in
Public open

HPP_OpenSpaceApproach.jpg

Uploaded by Casey Palma on Jul 19, 2023 at 3:19 pm

 HP PLAZA 3rd - DRAINAGE WORKSHEET.pdf

Uploaded by Casey Palma on Jul 19, 2023 at 3:24 pm

 HitchingPost_TIS_Feb2022.pdf

Uploaded by Casey Palma on Jul 19, 2023 at 3:24 pm



HPP3_TNP.jpg

Uploaded by Casey Palma on Jul 19, 2023 at 3:25 pm

 Ziggis MeetingSummary 3.1.2023.pdf

Uploaded by Casey Palma on Jul 19, 2023 at 3:26 pm



IMG_1508.jpeg

Uploaded by Casey Palma on Aug 15, 2023 at 4:30 pm

 PUDC-23-102 CommentLetter.pdf

Uploaded by Lonnie Olson on Aug 15, 2023 at 3:56 pm



IMG_1507.jpeg

Uploaded by Casey Palma on Aug 15, 2023 at 4:30 pm

 ApplicantRESPONSE_PUDC-23-102-103_HPP3_082223.pdf

Uploaded by Casey Palma on Aug 23, 2023 at 1:38 pm

BASES OF BEARINGS -- WYOMING STATE PLANE COORDINATES, EAST ZONE
NAD83--2011. DISTANCES ARE GROUND DISTANCES.

ALL UNMUNITIONED LOT CORNERS, ANGLE POINTS, AND POINTS OF
CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS
ON 1/2" DIA. REBAR.

NO PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY FILL
WITHIN A F.E.M.A. 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M.
PANEL NO.56021C1099F, DATED 1/17/2007.

"MUTUAL EASEMENTS" DESIGNATED HEREON SUPPLEMENT, REPLACE OR CORRESPOND
TO THOSE "INGRESS/EGRESS, CIRCULATION, DRAINAGE, & UTILITY EASEMENT(S)"
PLATTED WITH HITCHING POST PLAZA, 2ND FILING AND ARE GRANTED TO ALL OWNERS
OF THE PLATTED EASEMENT FOR THE PURPOSES INDICATED.

PARKING (WHERE APPLICABLE) AND LANDSCAPING IS ALLOWED WITHIN THESE
EASEMENT AREAS PROVIDED IT DOES NOT CONFLICT OR OBSTRUCT WITH PROPER
CIRCULATION, SITE DESIGN, OR OTHER APPLICABLE STANDARDS OR REGULATIONS.

"JOINT ACCESS EASEMENT" GRANTED HEREON TO ALL OWNERS OF LANDS
CONTAINED WITHIN THE PLAT BOUNDARY FOR MUTUAL ACCESS TO WEST
LINCOLN AVENUE (A 20' EASEMENT) AND UTILITY (ELECTRICITY) & DRAINAGE. SAID
EASEMENT IS COINCIDENT WITH WYDOT ACCESS PERMIT #LA-022-48528.

"MUTUAL DRAINAGE EASEMENT" ACROSS LOT 4 HEREON IS COINCIDENT WITH
THE EXISTING EASEMENT PLATTED WITH HITCHING POST PLAZA, 2ND FILING
AND IS PROVIDED FOR STORMWATER DETENTION AND DRAINAGE FACILITIES FOR
THE LOT 4 CORNER WITHIN THIS REPLAT AND LOTS 1 & 2, BLOCK 1,
HITCHING POST PLAZA, 2ND FILING.

"BOPU UTILITY & ACCESS EASEMENT(S)" (HEREINAFTER REFERRED TO AS
"BOPU EASEMENT(S)"), SHOWN AND DESCRIBED HEREON, ARE HEREBY
GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE
(BOPU), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR INSTALLATION,
MAINTENANCE, REPAIR, REPLACEMENT AND OPERATION OF DOMESTIC WATER AND
SANITARY SEWER MAINS/PIPELINES AND FIRE HYDRANTS (COLLECTIVELY
REFERRED TO AS "FACILITIES").

NO OTHER UTILITIES MAY CROSS THE BOPU EASEMENT, OR ON WITHIN THE BOPU EASEMENT, EXCEPT AS FOLLOWS:

A. OTHER UTILITIES MAY CROSS THE BOPU EASEMENT, IF AND ONLY IF:

- i. UTILITY'S FACILITIES CROSS THE BOPU FACILITIES AT NO LESS THAN A 60 DEGREE ANGLE;
- ii. A MINIMUM OF 24 INCHES OF VERTICAL CLEARANCE IS PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU; AND
- iii. A COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU EASEMENT IS PROVIDED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU EASEMENT.

B. IF GRANTOR REQUIRES RELOCATION OF THE FACILITIES, GRANTEE AGREES TO RELOCATE THE FACILITIES AND GRANTS THE GRANTOR ANY DAMAGE TO OR RELOCATION OF THE FACILITIES, PROVIDES A SUITABLE ALTERNATE LOCATION FOR SUCH FACILITIES AND GRANTS THE NECESSARY EASEMENT RIGHTS AT THE NEW LOCATION UPON THE SAME TERMS AND CONDITIONS PROVIDED WITH THE ORIGINAL EASEMENT.

C. IF GRANTEE (BOPU/CITY OF CHEYENNE) REQUIRES RELOCATION OF THE FACILITIES, GRANTEE SHALL PAY FOR REMOVAL AND RELOCATION OF THE FACILITIES.

D. IF GRANTEE ACCESSES THE FACILITIES OR UNDERTAKES WORK OR REPAIRS TO THE FACILITIES, GRANTEE SHALL GRANTOR ANY DAMAGE TO GRANTOR'S PROPERTY RESULTING THEREFROM; INCLUDING RESTORATION OF ANY AREAS DISTURBED AS A RESULT OF SUCH ACCESS AND/OR WORK.

E. PER 811c.13c OF THE BOPU INFRASTRUCTURE POLICIES AND DESIGN CRITERIA (AMENDED 11/27/2018), A MINIMUM 10-FOOT HORIZONTAL SET-BACK FROM EDGE OF BOPU EASEMENT SHALL BE MAINTAINED FOR PERMANENT STRUCTURES. SLEEVES MAY BE USED IN LIEU OF A 10-FOOT SETBACK.

"THE EASEMENTS" SHOWN HEREON ARE GRANTED TO BLACK HILLS ENERGY, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR "DRY" UNDERGROUND UTILITY(IES) DISTRIBUTION AND SERVICE(S).

F. "PUBLIC PEDESTRIAN EASEMENT" SHOWN HEREON PLATTED WITH HITTING POST PLAZA, 2nd FILING, GRANTED FOR PUBLIC SIDEWALK AND TO BE CONSIDERED AND REGARDED AS PUBLIC EASEMENT UNDER ADMINISTRATION AND JURISDICTION AUTHORITY OF THE CITY OF CHEYENNE AND THE WYOMING TRANSPORTATION COMMISSION (WYDOT). SAID EASEMENT PARTICULARLY DESCRIBED AS BEING ALL OF THE SOUTH 18' OF LOT 2, BLOCK 1, HITTING POST PLAZA, 2nd FILING AND ALL OF THE SOUTH 18' SERVICE EASEMENT LOT 2, BLOCK 1, HITTING POST PLAZA, 3rd FILING (THIS PLAT).

G. "16" SANITARY SEWER SERVICE EASEMENT" CROSS LOT 2, BLOCK 1, HITTING POST PLAZA, 2nd FILING PLATTED WITH HITTING POST PLAZA, 2nd FILING TO PROVIDE SERVICE CONNECTION FOR LOT 1, BLOCK 1, HITTING POST PLAZA, 2nd FILING.

1. PURSUANT TO PRIOR SUBDIVISION PLATS (CHEYENNE ICE AND EVENTS CENTER, 4th FILING, AND HITTING POST PLAZA, 1st FILING (NOW DEFUNCT)):

ALL STAKEHOLDERS, INCLUDING THE CITY OF CHEYENNE, HEREBY MUTUALLY AGREE, ATTEST, AND CONSENT, BY THEIR SIGNATURES AFFIXED HEREIN IN APPROVAL, VACATION, AND DEDICATION STATEMENTS, TO THE PRIOR AND CONTINUED VACATION/ EXTINGUISHMENT OF THAT "RECIPROCAL EASEMENT AGREEMENT" REGISTERED WITH THE COUNTY CLERK'S OFFICE AT BOOK 1981, PAGE 2069 IN THE IN THE REAL ESTATE OFFICE OF THE COUNTY CLERK AND EX-OFFICIO REGISTER OF DEEDS FOR LARAMIE COUNTY, WYOMING.

2. LOT 2, BLOCK 1 CREATED HERewith IS INTENDED TO ACCOMMODATE SHARED FACILITIES AND MUTUAL ACCESS TO HITTING POST PLAZA, 1st, 2nd, & 3rd FILING.

OWNERSHIP AND MAINTENANCE RESPONSIBILITY ARE TO REMAIN WITH THE CURRENT LANDOWNER, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.

BY THEIR SIGNATURES AFFIXED HEREON, ALL STAKEHOLDERS OF THIS SUBDIVISION PLAN AS SHOWN HEREON, IN CONSENT TO THE FOLLOWING BY THEIR FREE ACT AND DEED AND IN FULL KNOWLEDGE OF THE CONTENTS OF THIS INSTRUMENT, HEREBY AGREE TO THE FOLLOWING:

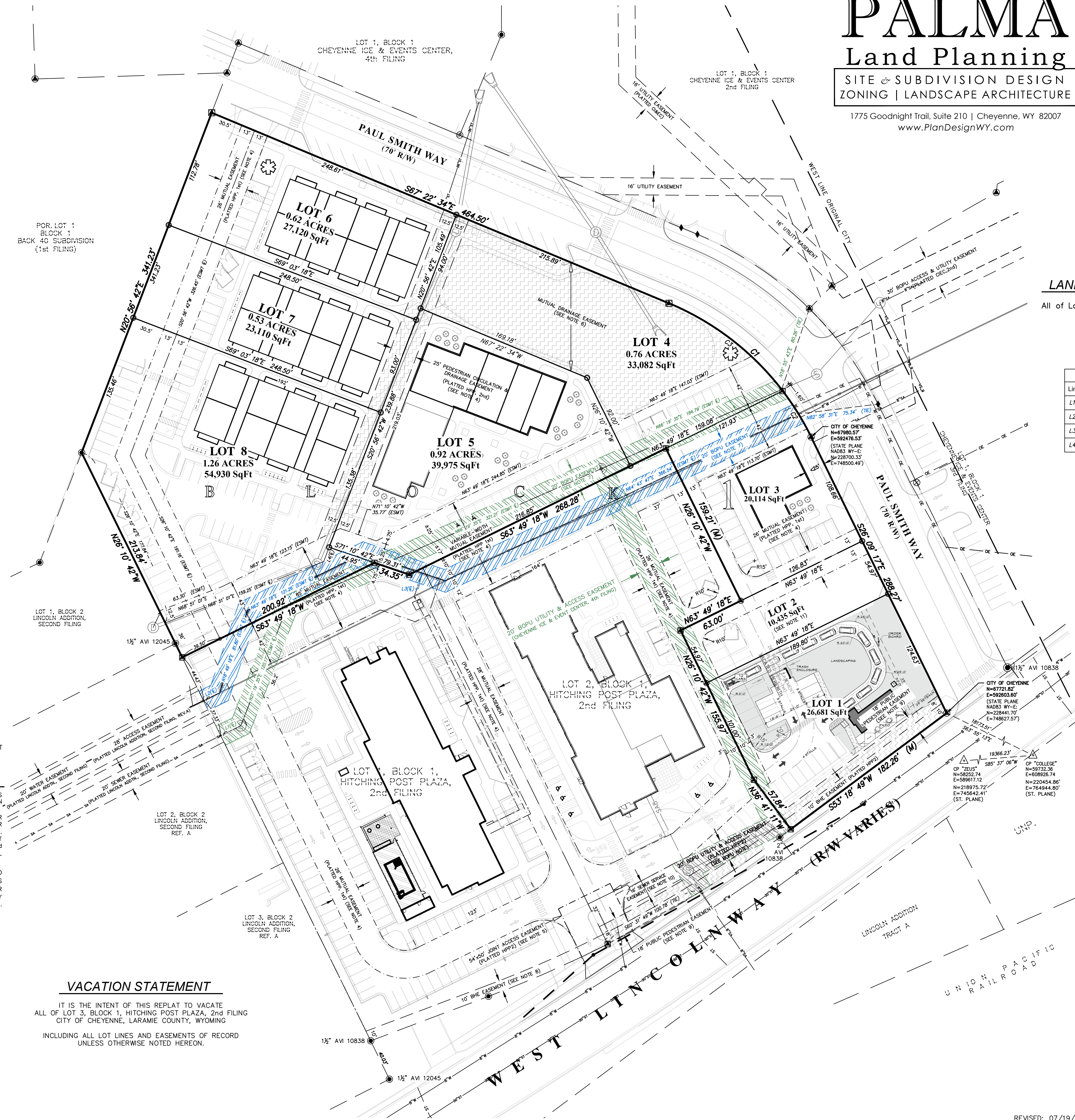
OWNERSHIP OF LOT 4, BLOCK 1, COMMON LOT AND DRAINAGE EASEMENT, IS RESERVED FOR MUTUAL USES AS DESCRIBED; SAID TRACT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS, AND SUCH EASEMENTS SHALL BE CONSIDERED TO BE PART OF THE COMMON OWNERSHIP OF SAID LOT SHALL BE ESTABLISHED BY UNDIVIDED PROPORTIONAL INTERESTS (RATIO OF OWNERSHIP AREA TOTAL PLATTED LOT AREA(S) OF BLOCK 1, HITTING POST PLAZA, 3rd FLOOR, 1000 WEST 10TH AVENUE, LOS ANGELES, CALIFORNIA 90006, TO THE COMMON LOT(S) CONTAINED WITHIN BLOCK 1, THIS PLAT THEIR LEGAL SUCCESSORS AND/OR OTHERS.

AUTHORITY OF PRIVATE OPEN SPACES. COMMON LOT(S) IS/ARE OWNED ASCRIBED ABOVE, HOWEVER; AUTHORITY OF SAID LANDS AND PLATTED BOUNDARIES (OR ADJUSTMENTS HERETO) MAY BE ASSIGNED, IN WHOLE OR IN PART, TO A MANAGING ENTITY OR OTHER ESTABLISHED OWNERS ASSOCIATION, AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY RECORDED AND FILED WITH THE COUNTY CLERK OF LOS ANGELES COUNTY, CALIFORNIA. THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS, AND SUCH AGREEMENTS SHALL BE CONSIDERED TO BE PART OF THE COMMON OWNERSHIP OF SAID LOT(S).

[illegible]

IT IS THE INTENT OF THIS REPLAT TO VACATE
ALL OF LOT 3, BLOCK 1, HITCHING POST PLAZA, 2nd FILING
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

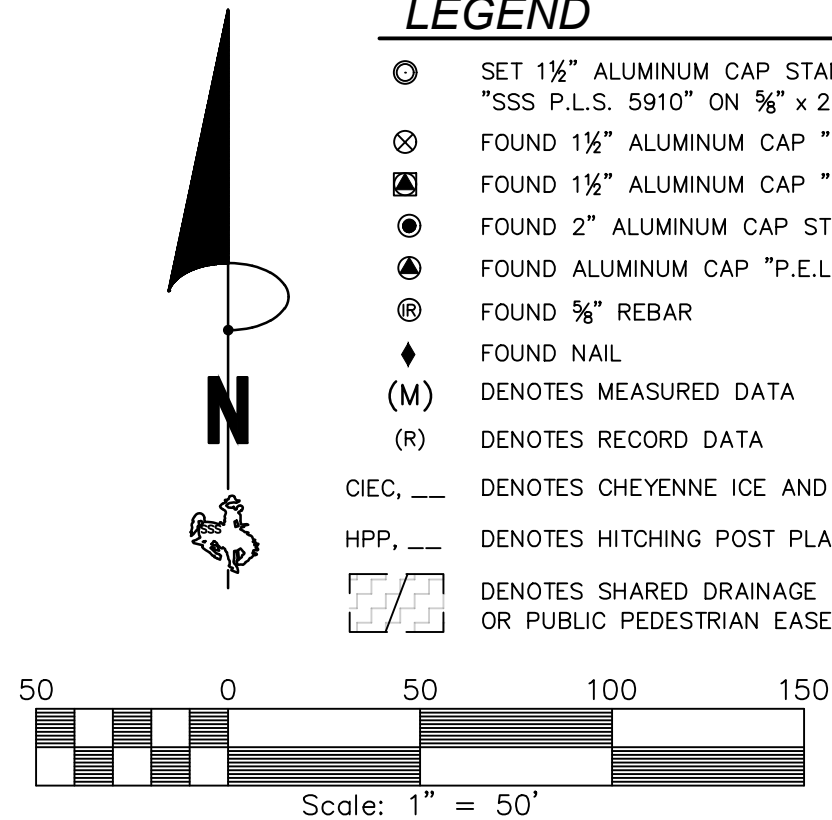
INCLUDING ALL LOT LINES AND EASEMENTS OF RECORD
UNLESS OTHERWISE NOTED HEREON.



1775 Goodnight Trail, Suite 210 | Cheyenne, WY 82007
www.PlanDesignWY.com

1775 Goodnight Trail, Suite 210 | Cheyenne, WY 82007
www.PlanDesignWY.com

 SET 1/2" ALUMINUM CAP STAMPED
 "SSS P.L.S. 5910" ON 3/4" x 24" REBAR
 FOUND 1/2" ALUMINUM CAP "SSS P.L.S. 2500"
 FOUND 1/2" ALUMINUM CAP "SSS P.L.S. 5910"
 FOUND 2" ALUMINUM CAP STAMPED AS NOTED
 FOUND ALUMINUM CAP "P.E.L.S. 2617"
 FOUND 3/8" REBAR
 FOUND NAIL
 (M) DENOTES MEASURED DATA
 (R) DENOTES RECORD DATA
 D/C, ____ DENOTES CHEYENNE ICE AND EVENTS CENTER,
 HPP, ____ DENOTES HITCHING POST PLAZA, FILING #
 DENOTES SHADED DRAINAGE EASEMENT(S)
 OR PUBLIC PREDERMINED EASEMENT(S)



All of Lot 3, Block 1, Hitching Post Plaza, 2nd Filing, City of Cheyenne, Laramie County, Wyoming

LINE TABLE		
Line #	Bearing	Length
L1(℄)	N63.° 54' 25" E	20.99'
L2(℄)	N63.° 34' 48" E	16.74'
L3(℄)	S71.° 13' 00" E	80.37'
L4(℄)	N20° 56' 42" E	14.32'

BOUNDARY CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	41° 13' 16"	260.00'	S46° 45' 55"E	183.05'	187.06'

INTERNAL CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C2	11° 12' 36"	260.00'	S31.° 45' 35"E	50.79'	50.87'
C3	30° 00' 41"	260.00'	S52.° 22' 13"E	134.64'	136.19'

STEIL SURVEYING SERVICES
1102 WEST 19th STREET
CHEYENNE, WY 82001
307-634-7273

SWEETGRASS LAND CO., LLC
1805 CAMPSTOOL ROAD
CHEYENNE, WY 82007

PALMA LAND PLANNING
1775 GOODNIGHT TRAIL, SUITE 210
CHEYENNE, WY 82007
307-996-8281

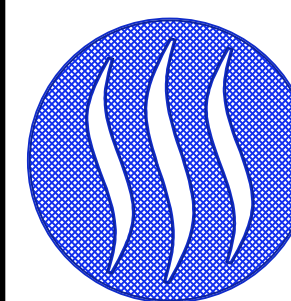
LOVAS ENGINEERING
1869 GRIZZLY GULCH
CHEYENNE, WY 82009
307-421-7835

W2 TRAFFIC ENGINEERING, LLC
MICHAEL GOSTOVICH, P.E.
11800 BLAZER ROAD
CHEYENNE, WY 82009

SWAGGER CONSTRUCTION
2366 MUGHO ROAD
CHEYENNE, WY 82009
307-222-6386

AN ADMINISTRATIVE REPLAT OF
ALL OF BLOCK 1, HITCHING POST PLAZA, 1st FILING
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED JANUARY 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
 1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
 756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com

REVISED: 07/19/2023
 \21130 HITCHING POST ALTA PAS\21130E HPP3RD.DWG
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NOTES

1. BASIS OF BEARINGS — WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83—2011. DISTANCES ARE GROUND DISTANCES.
2. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE, TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾" x 24" REBAR.
3. NO PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY LAY WITHIN A F.E.M.A. 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M. PANEL No.56021C1089F, DATED 1/17/2007.
4. "MUTUAL EASEMENTS" DESIGNATED HEREON SUPPLEMENT, REPLACE OR CORRESPOND TO THOSE "INGRESS/EGRESS, CIRCULATION, DRAINAGE, & UTILITY EASEMENT(S)" PLATTED WITH HITCHING POST PLAZA, 2nd FILING AND ARE GRANTED TO ALL OWNERS OF LANDS CONTAINED WITHIN THE PLAT BOUNDARY FOR THE PURPOSES INDICATED. PARKING (WHERE APPLICABLE) AND LANDSCAPING IS ALLOWED WITHIN THESE EASEMENT AREAS PROVIDED IT DOES NOT CONFLICT OR OBSTRUCT WITH PROPER CIRCULATION, SITE DESIGN, OR OTHER APPLICABLE STANDARDS OR REGULATIONS.
5. "JOINT ACCESS EASEMENT" GRANTED HEREON TO ALL OWNERS OF LANDS CONTAINED WITHIN THE PLAT BOUNDARY FOR MUTUAL ACCESS TO WEST LINCOLNWAY (AKA US 30) AND ANY NECESSARY UTILITIES(S) & DRAINAGE; SAID EASEMENT IS COINCIDENT WITH WYDOT ACCESS PERMIT #LA-022-48528.
6. "MUTUAL DRAINAGE EASEMENT" ACROSS LOT 4 HEREON IS COINCIDENT WITH THE EXISTING EASEMENT PLATTED WITH HITCHING POST PLAZA, 2nd FILING AND IS PROVIDED FOR STORMWATER DETENTION AND DRAINAGE FACILITIES FOR THE LANDS CONTAINED WITHIN THIS REPLAT AND LOTS 1 & 2, BLOCK 1, HITCHING POST PLAZA, 2nd FILING.
7. "BOPU UTILITY & ACCESS EASEMENT(S)" (HEREINAFTER REFERRED TO AS "BOPU EASEMENT(S)") SHOWN AND DESCRIBED HEREON, ARE HEREBY GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE (BOPU), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR INSTALLATION, MAINTENANCE, REPAIR, ALTERATION AND OPERATION OF DOMESTIC WATER AND SANITARY SEWER MAINS/PIPELINES AND FIRE HYDRANTS (COLLECTIVELY REFERRED TO AS "FACILITIES").
- NO OTHER UTILITIES MAY INSTALL FACILITIES ON OR WITHIN THE BOPU EASEMENT, EXCEPT AS FOLLOWS:
- A. OTHER UTILITIES MAY CROSS THE BOPU EASEMENT, IF AND ONLY IF:
- i. UTILITY'S FACILITIES CROSS THE BOPU FACILITIES AT NO LESS THAN A 60 DEGREE ANGLE;
- ii. A MINIMUM OF 24 INCHES OF VERTICAL CLEARANCE IS PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU; AND
- iii. A COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU EASEMENT IS PROVIDED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU EASEMENT.
- B. IF GRANTOR REQUIRES RELOCATION OF THE FACILITIES, GRANTEE AGREES TO RELOCATE THE FACILITIES PROVIDED THAT GRANTOR PAYS, FOR THE RELOCATION OF THE FACILITIES, PROVIDES A SUITABLE ALTERNATE LOCATION FOR SUCH FACILITIES AND GRANTS THE NECESSARY EASEMENT RIGHTS AT THE NEW LOCATION UPON THE SAME TERMS AND CONDITIONS PROVIDED WITH THE ORIGINAL EASEMENT.
- C. IF GRANTEE (BOPU/CITY OF CHEYENNE) REQUIRES RELOCATION OF THE FACILITIES, GRANTEE SHALL PAY FOR REMOVAL AND RELOCATION OF THE FACILITIES.
- D. IF GRANTEE ACCESSES THE FACILITIES OR UNDERTAKES WORK OR MAINTENANCE ON THE FACILITIES, GRANTEE SHALL REPAIR ANY DAMAGE TO GRANTOR'S PROPERTY RESULTING THEREFROM, INCLUDING RESTORATION OF ANY AREAS DISTURBED AS A RESULT OF SUCH ACCESS AND/OR WORK.
- E. PER §11.6.13.c OF THE BOPU INFRASTRUCTURE POLICIES AND DESIGN CRITERIA (AMENDED 11/27/2018), A MINIMUM 10-FOOT HORIZONTAL SET-BACK FROM EDGE OF BOPU EASEMENT SHALL BE MAINTAINED FOR PERMANENT STRUCTURES. SLEEVES MAY BE USED IN LIEU OF A 10-FOOT SETBACK.
8. "BHE EASEMENTS" SHOWN HEREON ARE GRANTED TO BLACK HILLS ENERGY, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR "DRY" UNDERGROUND UTILITY(IES) DISTRIBUTION AND SERVICE(S).
9. "PUBLIC PEDESTRIAN EASEMENT" SHOWN HEREON PLATTED WITH HITCHING POST PLAZA, 2nd FILING, GRANTED FOR PUBLIC SIDEWALK AND TO BE CONSIDERED AND REGARDED AS PUBLIC RIGHT-OF-WAY UNDER ADMINISTRATION AND JURISDICTIONAL AUTHORITY OF THE CITY OF CHEYENNE AND THE WYOMING TRANSPORTATION COMMISSION (WYDOT). SAID EASEMENT PARTICULARLY DESCRIBED AS BEING ALL OF THE SOUTH 18 FEET OF LOT 2, BLOCK 1, HITCHING POST PLAZA, 2nd FILING AND ALL OF THE SOUTH 18 FEET OF LOT 1, BLOCK 1, HITCHING POST PLAZA, 3rd FILING (THIS PLAT).
10. "16" SANITARY SEWER SERVICE EASEMENT" ACROSS LOT 2, BLOCK 1, HITCHING POST PLAZA, 2nd FILING PLATTED WITH HITCHING POST PLAZA, 2nd FILING TO PROVIDE SERVICE CONNECTION FOR LOT 1, BLOCK 1, HITCHING POST PLAZA, 2nd FILING.
11. PURSUANT TO PRIOR SUBDIVISION PLATS (CHEYENNE ICE AND EVENTS CENTER, 4th FILING, AND HITCHING POST PLAZA, 1st FILING (NOW DEFUNCT)):
- ALL STAKEHOLDERS, INCLUDING THE CITY OF CHEYENNE, HEREBY MUTUALLY AGREE, ATTEST, AND CONSENT, BY THEIR SIGNATURES AFFIXED HEREON IN APPROVAL, VACATION, AND DEDICATION STATEMENTS, TO THE PRIOR AND CONTINUED VACATION/ EXTINGUISHMENT OF THAT "RECIPROCAL EASEMENT AGREEMENT" RECORDED ON THE 30TH DAY OF NOVEMBER, 2006 AT BOOK 1981, PAGE 2069 IN THE IN THE REAL ESTATE OFFICE OF THE COUNTY CLERK AND EX-OFFICIO REGISTER OF DEEDS FOR LARAMIE COUNTY, WYOMING.
12. LOT 2, BLOCK 1 CREATED HERewith IS INTENDED TO ACCOMMODATE SHARED FACILITIES AND MUTUAL ACCESS TO HITCHING POST PLAZA, 1st, 2nd, & 3rd FILINGS.
- OWNERSHIP AND MAINTENANCE RESPONSIBILITY ARE TO REMAIN WITH THE CURRENT LANDOWNER, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.

NOTE TO ASSESSOR

BY THEIR SIGNATURES AFFIXED HEREON, ALL STAKEHOLDERS OF THIS SUBDIVISION PLAT AS SHOWN HEREON CONSENT TO THE FOLLOWING BY THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES:

OWNERSHIP OF LOT 4, BLOCK 1, COMMON LOT AND DRAINAGE EASEMENT, IS RESERVED FOR MUTUAL USES AS DESCRIBED; SAID TRACT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. OWNERSHIP OF SAID LOT SHALL BE ESTABLISHED BY UNDIVIDED PROPORTIONAL INTEREST (RATIO OF OWNERSHIP AREA/TOTAL PLATTED LOT AREA(S) OF BLOCK 1, HITCHING POST PLAZA, 3rd FILING) OF ALL OWNER(S) OF LOTS CONTAINED WITHIN BLOCK 1, THIS PLAT THEIR LEGAL SUCCESSORS AND/OR ASSIGNS.

AUTHORITY OF PRIVATE OPEN SPACE: COMMON LOT(S) IS/ARE OWNED AS DESCRIBED ABOVE, HOWEVER, AUTHORITY OF SAID LANDS AND PLATTED BOUNDARIES (OR ADJUSTMENTS THERETO) MAY BE ASSIGNED, IN WHOLE OR IN PART, TO A MANAGING ENTITY OR OTHER ESTABLISHED OWNERS ASSOCIATION, AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS).

VICINITY MAP

